3

Search, Seizure and Disposal of Property

Search and Seizure:

Inspection, Search and Seizure are different terms and are distinct from one another. To inspect is to look closely into or examine officially. A 'search' is not mere looking for something, which is produced, but to seek out to look for something, which is hidden or concealed. 'Seize' means taking possession.

- For the purpose of investigation, search means the examination of a man's person or the premises to discover evidence and material objects to connect the accused with the offence he has committed.
- A successful search not only will deprive the offender of the enjoyment of the property but also fix him with the crime, which he committed.
- The offenders always conceal the material objects either in a cavity caused by nature or by artificial means. It may also be done by blatant display of things.
- The power of search is one of the most important powers conferred on an IO or an officer in-charge of a Police Station by law. This power is even greater than power of arrest, as arrest can be made even by a private person for a cognizable and non-bailable offence if committed in his presence but he has no power of search.

Search: To look for wanted person and material which includes examination of individual person and premises.

Seizure: To take possession physically of material(s) recovered in search.

Constitutional and legal provisions:

- Under Article 19(1) (f) of the Constitution of India, a person is guaranteed the Fundamental Right of possession and enjoyment of his private property. This clause of the Article protects the right to acquire, hold and dispose of property. The power of search and seizure as contemplated in Cr.PC affects the right to hold property.
- The search by itself is not a restriction on the right to hold or enjoy property. No doubt the seizure and carrying away is a restriction on the possession and enjoyment of the property seized. This however is only temporary and for the limited purpose of investigation.
- A search and seizure is, therefore, only a temporary interference with the right to hold the premises searched and article(s) seized. Statutory regulation in this behalf is necessary and reasonable restriction cannot per se (by its nature) be considered to be unconstitutional. The damage, if any, caused by such temporary interference; if found to be in excess of legal authority, is a matter of redress in other proceedings.

Legal Provisions relating to search of a place

(i) Search without warrant

- Sec. 47 Cr.PC: Search of a place entered by person sought to be arrested.
- Sec. 165 Cr.PC: Search of premises within the limits of the SHO in emergent cases, also u/s 26 of TN City Police Act, 1888.
- Sec. 166 Cr.PC: Search of the premises in other PS limit in emergent cases.
- Sec. 153 Cr.PC: Search of any place without warrant for the purpose of inspection of weights and measures.
- The Magistrate can exercise the power of search u/s 103 Cr.PC.

(ii) **Search with warrant**

- Sec. 93 Cr.PC: Search for documents in any place inclusive of the postal or telegraph Department.
- Sec. 94 Cr.PC: Search for stolen property, counterfeit currency, forged documents, false seals, obscene objects, etc.
- Sec. 95 Cr.PC: Search for forfeited documents u/s 124A, 153A, 153B, 292 and 293 IPC.
- Sec.97 Cr.PC: Search of a person wrongfully confined.
- Sec. 98 Cr.PC: Search of abducted female.

Legal provisions relating to search the body of a person

- Immediately after arrest by Police u/s 51 Cr.PC.
- Person reasonably suspected of concealing any article for which such person may be searched u/s 100 (3) Cr.PC.

Sec.47 Cr.PC: Conducting search of a place entered by person sought to be arrested

- If the person to be arrested has entered into, or is within any place, any person residing in or being in charge of such place shall, on demand of such person acting as aforesaid or such Police Officer, allow him free ingress thereto, and afford all reasonable facilities for a search therein.
- If ingress to such place cannot be obtained u/s 47(1), then any outer or inner door or window of any house or place of the person to be arrested may be carefully opened to obtain admittance and search there. But if such place is an apartment in the occupancy of a woman who does not appear in public, notice to withdraw shall be given to such woman by such person or Police Officer before breaking it open and entering it u/s 47(2) Cr.PC.
- Any Police Officer or other person authorized to arrest may break open any outer or inner door or window of any house or place in order to liberate himself or any other person who, having lawfully entering for the purpose of making an arrest, is detained therein u/s 47(2) Cr.PC.
- Causing hurt to a Police Officer making search u/s 47 is an offence punishable u/s 332 IPC.
- U/s 47 Cr.PC any Police Officer having authority to arrest any person accused of an offence can search a place where the accused is hiding without a warrant of search.
- If in order to arrest suspected person, the Police Officer enters into a building, his action is prima facie justifiable. (Daitari Das and Ors. Vs State AIR 1956 Orissa 97)
- Where the door is open, it is required that the Police Officer should wait and make a formal demand to the occupier for entry in the house.

Sec.51 Cr.PC: Search of arrested person:

- If any person is arrested by a Police Officer under warrant which does not provide bail or under a warrant providing bail but the person is unable to furnish bail, and if any person is arrested without warrant, or by a private person under warrant, the officer or the private person may search such person and place in safe custody any article from the arrested person. (Sec. 51(1) Cr.PC)
- For searching a female accused, the search should be done by another female strictly protecting decency and modesty. (Sec.51(2) Cr.PC)
- This Section proves that no warrant is needed for search of a person under certain circumstances who has been arrested by a Police Officer or, made over to Police Officer by a private person after the arrest.
- If any article were seized from him, a receipt for the same should be given to him.

Search of a person reasonably suspected of concealing any article.

Sec.100 (3) Cr.PC. Where any person in or about such place is reasonably suspected of concealing about his person any article for which search warrant was made, such person may be searched.

Conducting search of premises:

House search with warrant:

To conduct a house search Police Officers should be generally armed with search warrants. There may be general search warrant u/s 94 Cr.PC. Search warrant for some specific purpose falls under Sections 97 and 98 Cr.PC and search warrant to seize forfeited publications u/s 95 Cr.PC.

Search of a place: (Section 165 and 166 Cr.PC)

- Law contemplates that all searches should be conducted under a warrant of search obtained from a competent Magistrate, but in emergent cases where there may be immediate necessity of search and there being no time to obtain the warrant from a Magistrate, powers of search are given to an officer in charge of a PS or a Police Officer making an investigation of an offence to conduct search without a warrant.
- Section 165 deals with search made by an officer in charge of PS or an officer investigating a case within the limits of his Station whereas Section 166 deals with search made beyond the limits of his Station for the reasons mentioned therein.
- Example: If an Investigating officer in a faraway place gets information that stolen property is concealed in a house in the village and it is apprehended it may be removed to some other place or may be destroyed, if it is not seized immediately, he can conduct a search without a warrant u/s 165 Cr.PC

The contents of Sec. 165 Cr.PC can be summarized into the following points:

- The power of search without warrant is given to the officer in charge of a PS or an officer investigating a case.
- A Police Officer can't make a search under this section if the offence is a Non-cognizable one. It must be one which he is authorized to investigate i.e. a cognizable offence.
- Reasonable grounds must exist for believing that the thing required will be found in that place and there would be undue delay in getting the thing in any other way.
- Grounds of belief as to the necessity of search must be previously recorded and communicated to the Magistrate forthwith u/s 165(1) Cr.PC.
- The Police Officer is bound to record in writing (a) the grounds of his belief that the search is necessary and (b) specifying in such writing, the thing for which search is to be made.
- The search must be for a specific thing, or document or tangible object, such as may be summoned to be produced by a Court u/s 91 and not for search of a person as u/s 51 or a general search u/s 93 Cr.PC.
- The provisions as to search warrants contained in sections 93-95, 97 and 99 Cr.PC and the general provision as to searches in Section 100 are applicable to search of a place u/s 165 (4) Cr.PC.
- The mere fact that the Police took independent witnesses and did not have such witnesses from the locality where the search was conducted does not make the search illegal.
- Copies of the record made, i.e. (i) the grounds for conducing the search without a warrant (ii) written order to the subordinate to conduct search and (iii) the search list, all should be sent to the Magistrate empowered to take cognizance of an offence.

- The search should be within the limit of the Police Officer investigating the case.
- The Court shall give the copy of grounds of search to owner or occupier of the premises on his application and free of cost.

The Contents of Section 166 Cr.PC can be summarized into the following points:

- If a search is to be conducted within the limits of another PS in the same or a different district, the Station House Officer not below the rank of Sub- Inspector only may require to give in writing to the Police Officer of the Station having jurisdiction to make the search. However, he may himself search if he considers that the delay occasioned may not serve the purpose.
- A Head Constable making an investigation cannot file such requisition to another jurisdiction PS SHO unless he is officer in charge of PS.
- In emergent cases, the officer in charge of one PS may search or cause to be searched places within the limits of another PS even without informing the jurisdictional PS SHO, subject to the conditions and procedure laid down u/s 165 and 100 Cr.PC.
- When search is made in another jurisdiction, a copy of the grounds for search and also list of seizures should be furnished to the Station House Officer of that jurisdiction and the Court having jurisdiction.
- Later the jurisdiction Court may send the documents of grounds for search and list of seizures to the original trial Court.
- The owner or occupier of the place searched shall, on application, be furnished free of cost with a copy of any record sent to the Magistrate.

Procedure for search u/s 100 Cr.PC reads: Persons in charge of closed place to allow search

- Whenever any place liable to search or inspection under this Chapter is closed, any person residing in or being in charge of such place, shall, on demand of the officer or other person executing the warrant, and on production of the warrant allow him free ingress thereto and afford all reasonable facilities for a search therein.
- If ingress into such place cannot be so obtained, the officer or other person executing the warrant may proceed in the manner provided by sub- Section (2) of Sec.47.
- Where any person in or about such place is reasonably suspected of concealing about his person any article for which search should be made, such person may be searched and if such person is a woman, the search shall be made by another woman with strict regard to decency.
- Before making a search under this Chapter, the officer or other person about to make it shall call upon two or more independent and respectable inhabitants of the locality in which the place to be searched is situated or of any other locality if no such inhabitant of the said locality is available or is willing to be a witness to the search, to attend and witness the search and may issue an order in writing to them or any of them to do so.
- The search shall be made in their presence, and a list of all things seized in the course of such search and of the place in which they are respectively found shall be prepared by such officer or other person and signed by such witnesses, but no person witnessing a search under the section shall be required to attend the Court as a witness of the search unless specially summoned by the Court.
- The occupant of the place searched, or some person in his behalf, shall in every instance, be permitted to attend during the search, and a copy of the list prepared under this section, signed by the said witnesses, shall be delivered to such occupant or person.
- When any person is searched under sub-section (3), a list of all things taken possession of shall be prepared, and a copy thereof shall be delivered to such person.

- Any person who, without reasonable cause, refuses or neglects to attend and witness a search under this section, when called upon to do so by an order in writing delivered or tendered to him, shall deemed to have committed an offence u/s 187 of the Indian Penal Code.

Sec. 153(1): Search of a place for Inspection of Weights and Measures:

(1) Any officer in charge of a PS may, without a warrant, enter any place within the limits of such Station for the purpose of inspecting or searching for any weights or measures or instruments for weighing, used or kept therein, whenever he has reason to believe that there are in such place any weights, measures or instruments for weighing which are false.

(2) The only case where the provisions of Sec. 100 have not been expressly made applicable is search without warrant u/s 153 for false weights, measures etc. It is however submitted that even in such cases the provisions of Section 100 would be made applicable to the extent it is practical to do so.

Search with Warrant Sec.93: When a search warrant may be issued:

1) (a) Where any Court has reason to believe that the person to whom summons or order u/s 91 or a requisition u/s 92(1) has been, or might be, addressed will not or would not produce the document or thing as required by such summons or requisition, or

(b) Where such document or thing is not known to the Court to be in the possession of any person, or

(c) Where the Court considers that the purpose of any inquiry, trial or other proceeding under this Code will be served by a general search or inspection (Sec.93(1) Cr.PC), it may issue a search warrant and the person to whom search warrant is directed, may search or inspect in accordance there in with and the provisions herein after contained.

2) The Court may, if it thinks fit, specify in the warrant the particular place or part thereof to which only the search or inspection shall extend; and the person charged with the execution of such warrant shall then search or inspect only the place or part so specified. (Sec. 93(2) Cr.PC).

3) A warrant to search for a document, parcel or other thing in the custody of the postal or Telegraph authorities can be issued only by a District Magistrate or Chief Judicial Magistrate (Sec.93 (3)Cr.PC).

- If any other Magistrate not so empowered issues such a warrant, such irregularities will vitiate the proceedings hence, the warrant shall have no effect u/s 461 Cr.PC.
- This section is not ultra virus of Art.19(1) or Art.20(3) of the Constitution of India. Search warrant should be set aside when no reasons are given for issuing the same and when the Magistrate does not appear to have applied his mind.

Sec. 94 Cr.PC: Search of a place for stolen property forged documents etc.:

- This Section authorizes the District Magistrate, Sub-Divisional Magistrate or Magistrate of First Class to issue a search warrant for stolen property, counterfeit currency notes, forged documents, false and obscene objects, books etc.,
- Under this section, the Court is authorized to issue search warrant to any Police Officer above the rank of a Constable to cause search in the manner specified in the warrant.
- Convey such property or article before a Magistrate until the offender is taken before a Magistrate or otherwise to dispose it of in some place of safety.
- He can take into custody any person having the knowledge about the property suspected to be a stolen property or objectionable article.

- If however such a search warrant is issued by any other Magistrate erroneously but in good faith, such a warrant shall not be ineffective merely on the ground that the Magistrate was not empowered to issue the same. This has been specifically provided by Section 460 Cr.PC. (Irregularities which do not vitiate proceedings).

Sec.95 Cr.PC: Search for forfeited publication:

Power to declare certain publications forfeited and to issue search warrants for the same.

- The Section authorizes any Magistrate to issue a search warrant to an officer not below the rank of Sub- Inspector to seize any newspaper or book or any document, which the State Govt. by notification declared to be forfeited. (Documents include any painting, drawing or photograph or visible representation).
- Criteria for forfeiting publications u/s 95 Cr.PC are that they should be punishable under any of these sections namely 124A, 153A, 153B, 292, 293, 295A IPC.
- For greater certainty and security, it has been made obligatory that at least two independent and respectable witnesses preferably of the locality or of any other locality who are willing to be witness should be present during such search.

Sec.97 Cr.PC: Search for a person wrongfully confined:

- Section 97 Cr.PC authorizes any District Magistrate, Sub- Divisional Magistrate or Magistrate of the First Class to issue a search warrant if he has reason to believe that a person is wrongfully confined person and the person if found shall be immediately produced before the Magistrate.
- A search for a person wrongfully confined can be done only on a warrant from any specified Magistrate u/s 97 Cr.PC. The Investigating Officer/ Police Officer cannot rescue a person wrongfully confined without a warrant even in a case under his investigation. This is an anomaly but that is how it is.
- If any other Magistrate not empowered to do so issues a search warrant it will be illegal and any entry into any place in consequence of such illegal warrant would be without any legal authority.

Sec. 98Cr.PC: Power to compel restoration of abducted Females:

- Upon complaint made on oath of the abduction or unlawful detention of a woman, or a female child under the age of eighteen years, for any unlawful purpose, District Magistrate, Sub-Divisional Magistrate or Magistrate of the first class may make an order for the immediate restoration of such woman to her liberty, or of such female child to her husband, parent, guardian or other person having the lawful charge of such child, and may compel compliance with such order, using such force as may be necessary.

Seizure of Property-Legal provision relating to seizure of property:

- From the accused person after arrest u/s 52 Cr.PC.
- From a closed place and from the suspected person u/s 100(5) and 100(7) Cr.PC.
- Crime suspected property from the suspected person u/s 41 and 102 Cr.PC.
- False weights, measures and instruments u/s 153(2) Cr.PC.

Sec.52 Cr.PC: Power to seize offensive weapons:

Provides that whenever a person is arrested under Cr.PC., the officer or any person making arrest of such person may seize any offensive weapon found in his possession and produce the same before the Court along with the arrested person.

Sec. 91 Cr.PC: Summons to produce document or other thing:

- An officer in-charge of a PS making an investigation may issue an order in writing to any person (other than the accused)

requiring him to produce any document or other thing in his possession.

- A person so summoned may produce it in person or through any other person.
- Such power, however, does not extend to calling for anything in the custody of the Postal or Telegraphic authority.
- The officer to request the said Postal or Telegraph authority through the Superintendent of Police to keep it in safe-custody and then address the CJM to call for it.

Sec. 102: Power of Police Officer to seize certain property:

- Any Police Officer may seize any property either movable or immovable which may be alleged or suspected to have been stolen, or which may be found under circumstances which creates suspicion of the commission of any offence either cognizable or non cognizable.
- Such Police Officer, if subordinate to the officer-in-charge of a PS, shall immediately report the seizure to that officer.
- The word any offence shows that even though the offence is non cognizable, the Police may seize property found under suspicious circumstances. The suspected property must be seized by the Police officer himself and he cannot order anybody to do it.
- He shall report the search and seizure to the Magistrate. If the property seized cannot be conveniently transported to the Court its custody may be given to any person on his undertaking to produce it before the Court whenever required.
- If the seized property is perishable in nature and the person entitled to the possession of such property is unknown and its worth is less than Rs. 500 it may forthwith be sold by auction under the order of the Superintendent of Police and the provisions of Sections 457 and 458 shall be adopted.
- When a person is carrying property suspected to be stolen it can be seized under Sections 41 and 102 Cr.PC.

Sec. 153(2): Seizure of false weights and measures:

Any Police officer finds in such place any weights, measures or instruments for weighting which are false, he may seize the same and shall forthwith give information of such seizure to a Magistrate having jurisdiction.

Unclaimed Property:

Seizure by the Police sometimes may extend beyond the limits of crime investigation. Section 25 of the Police Act 1861 provides for taking charge of unclaimed property.

Properties bearing clues seized and sent for Chemical Examination:

- The seized articles properties shall be packed and sealed whenever it contains any incriminating marks like blood stains or whenever it is found necessary.
- The articles seized by the Police will have to be submitted to the Chemical Examiner after taking precautions for ensuring its safety and securing it against tampering.
- The 'chain of custody' of the exhibit from Scene of crime to PS, PS to Court, Court to FSD and again FSD to Court shall be ensured.
- When there is no evidence to show that the seals on the recovered article put by the IO at the place of recovery were the same as those when the article were delivered to the Chemical Examiner, much reliance cannot be placed on blood stains or recovered article.

Legal Formalities to be followed before, during and after search and seizure:

The following instructions and procedure may be useful for effective searches:

Action before the search:

- Searching officer should acquaint himself with the facts of the case, i.e. he must know what he should look for.

- He must acquaint himself with position of the house (blue print of building). At least they must know the entry and exit of the building.
- Knowledge of the place is necessary for requirement of man power for the search.
- He should take with him sufficient staff as may be required for the search. At the same time he should not take excess persons with him. Actual search party should consist of minimum possible number.
- He should take necessary items such as search list forms, sealing wax, cotton tape, thread, seal etc., with him.
- Journeys to the place should be quick but at the same time he should not arouse suspicion in the minds of the people of the locality.
- On reaching the place he should mount the guard at the place of exit and entrance to prevent the escape or entering of the offender or any things thrown outside the house or into the house.
- Search party should be briefed well in advance about the object and purpose of the search and what to look for.
- All members of the search party should offer themselves to be searched by the occupant of the house, who should be asked to take search of the witnesses also.
- Two respectable persons of the locality who are willing to act as witnesses should be invited to witness the search. The witnesses should be independent.
- If no such inhabitants of the locality are available or willing to be witnesses, the services of any other person or persons of any other nearby locality can be requisitioned. In such situations, the reasons for non availability of local witnesses must be recorded.
- Any person who without reasonable cause, refuses or neglects to attend and witness a search called upon by an order in writing shall be deemed to have committed an offence u/s 187 of IPC as per Section 100(8) of Cr.PC.
- Before entering the search premises the Police Officer should disclose his identity and intimate the purpose and object of the search to the owner or occupier of the premises.
- The search officer has the right to break open the door or window of the building if on demand free ingress is not allowed.

Action during the search:

- Residents of the house including the women folk should be asked to collect at one place but they should never be out of sight.
- At least one member of the house should remain present during the search.
- The search must be systematic to avoid oversight. Systematic apportioning of the area to be searched ensures that each member of the search party knows exactly his region. Various search methods are there. e.g. Grid method, Spiral method, Strip method, Zonal method and Wheel method. According to the premises whether indoor or outdoor and with the available strength, suitable search method should be adopted. For example if it is an indoor search and single officer is available spiral method may be adopted, i.e., clockwise or anti-clockwise so that no place is left unsearched.
- The witnesses for search should not be left outside and they should remain present with the Police Officer making the search.
- All possible places should be searched and newly excavated (unearthed) places should be carefully scrutinized.
- Position of the objects should be recorded properly and if any abnormality, found, should be observed.
- While making the search the search officer should remain alert and read the indications given by the occupants of the house as sometimes the occupants go on gazing at a particular place where the property is concealed or they keep moving in the same area.
- Persons shall not be allowed to enter the room without being searched.
- The officer and his team should be very careful about their personal safety because any of the inmates may be vulnerable and

hardcore element and may try to attack or cause harm to the search team.

- During all stages of search, the supervisor should keep himself informed of the developments of search.
- When any property is recovered, it should be carefully noted, labeled and signed by the witnesses so that subsequent identification may be made by them.
- Search list should be prepared on the spot. It should be read and explained to the witnesses and their attestation should be obtained thereon.
- A copy of the search list should be furnished to the house owner/occupier under proper acknowledgement.
- If no items are seized during search, a 'NIL' search list should be prepared.
- A Mahazar is not necessary. A list of seizure prepared by the officer attested by the witnesses (panchanama) is required.
- Panchanama is the record of what panchas (panchaayathar-witnesses) see. As per the Cr.PC. the Police must perform a panchanama in the presence of panchas under two circumstances (i) Search of article as per Sec. 100(4) Cr.PC. and (ii) an investigation into death u/s 175 Cr.PC.

Action after the search:

- Before leaving the place, the Police party and the witnesses should offer themselves to be searched by the occupant of the house to make him believe that the search is a genuine one and the property seized should also be shown to him.
- The record of the search should be sent to the concerned Magistrate immediately.
- Copies of the search proceedings shall be sent immediately to the Magistrate empowered to take cognizance of the case.
- Ensure that the search is carried out with utmost caution and humanitarian concern so that no room is given for complaints of Human Right violations, at any stage.
- Search of a place with warrant shall be made only on the place which is mentioned under search warrant. If the IO wants search of other places other than the place mentioned in the warrant it shall be done u/s 165 Cr.PC for the reasons mentioned therein.
- Non-compliance with these provisions may cast doubts on the bonafides of the officer concerned but that would not make the evidence relating to the search inadmissible.

Need for proper use of powers of search and seizure:

The following points may also be kept in mind as suggested by the following rulings:-

- Only officer in-charge of PS or an IO can exercise power of search of a place. As per Sec.36 Cr.PC any Police Officer higher in rank can also exercise that power. But a Constable cannot exercise the power of search without warrant.
- Where there is no urgency for the search and there is sufficient time to get a regular search warrant from the Magistrate, search without warrant is illegal.
- The Police Officer is restrained from conducting anything in the nature of general search.
- It is vicious to allow a Police Officer to have power to conduct a general search without knowing what he is going to search merely to see if he can find anything incriminating in a person's house
- Roving searches conducted without initial record regarding the places to be searched and the things for which the search was to be made do not come under the provisions of Sec.165 Cr.PC.
- If the Police Officer does not submit himself to a search before entry into the premises about to be searched, it becomes an irregularity and not an illegality.
- The rule as to offering the search of the persons of the Police Officers and of the search witnesses before entering the house should not be neglected so that there may be no suspicion that anything has been planted.
- Video recording of the entire search proceedings may be of great help to avoid

all vexatious allegations and to guarantee genuinity and trustworthiness of the search.

- The Supreme Court held that Sec.100 Cr.PC would not apply to search of a person but only to search of a place.
- Bank account of accused or any of his relations is property within the meaning of Section 102 Cr.PC and Police Officer in course of investigation can seize or freeze operating of such bank account if it is found to have direct links with the commission of an offence under investigation.
- Failure to observe the formalities of personal search of the searching officer and witnesses renders the recovery highly suspicious.
- When the failure to comply strictly with the provisions of the Section is satisfactorily explained, it does not make the search illegal.
- Non compliance by police u/s 100 or 165 Cr.PC is only an irregularity and not an illegality.
- The search and recovery will not be affected on the ground that the search procedure in Sections 100 and 165 of Cr.PC was not followed. Where it is alleged and proved that the articles were produced by the accused person himself, Sec.165 does not apply.
- It is to be borne in mind that search and seizure with regard to certain offences shall be done by certain higher ranking officials only in which he is authorized to investigate the offences such as 304B IPC, SC/ST (PA) Act, etc.
- It is to be borne in mind that the provisions of Sections 165 and 166 Cr.PC cannot be applicable for search of a private place under Sec. 80 IT Act, 2000.

Custody and disposal of property seized by Police:

Property may be seized and taken into custody by the police under various circumstances which are detailed below:

1. Under Section 25 of the Police Act, Police are required to take charge of unclaimed property which they may happen to come by in the course of their rounds, and send it with report to the District Magistrate and seek his order for their disposal.
2. If the police seizes any property u/s 102 Cr.PC, such seizure shall be reported forthwith to the jurisdictional Magistrate, and produced before him for further orders regarding custody. In cases where the property seized cannot be conveniently transported to the Court, the police officer may give custody of the property to any person on executing a bond undertaking to produce the property before the Court as and when required.
3. If the circumstances of the seizure of the property relates to a cognizable offence, then it becomes 'case property' relating to that case and would be subject to the Court's orders regarding its custody and final disposal on the conclusion of trial.
4. During the investigation, Police may seize property in the course of a search conducted u/s 165/166 Cr.PC or under search warrant issued by a Magistrate. Such property would be case property and would be subject to the Court's order regarding its custody and final disposal.

Property other than case Property:

1) Whenever any property is seized under the provisions of Cr.PC and such property is not produced in a criminal court during an inquiry or trial, the Magistrate may make such orders as he thinks fit for the disposal of such property or the delivery of such property to the person entitled to the possession thereof, or if such person cannot be ascertained, to any other person for the custody and production of such property.
2) If the person so entitled is not known, the Magistrate shall issue a proclamation specifying the article of which such property consists, and requiring any person who may have a claim thereto, to appear before him and establish his claim within six months from the date of such proclamation. (Section 457 Cr.PC)
3) If no person within such period establishes his claim to such property, and if the person in whose possession such property was found is unable to show that it was legally

acquired by him, the Magistrate may by order direct that such property shall be at the disposal of the State Government. (Section 458 Cr.PC)

4) If the person entitled to the possession of such property is unknown or absent and the property is subject to speedy and natural decay, the Magistrate if in his opinion thinks that its sale would be for the benefit of the owner then he may at any time direct it to be sold (Section 459 Cr.PC)

Case Property:

- If a case property is produced during any inquiry or trial, the Court may make such order as it thinks fit for the proper custody of such property pending the conclusion of the inquiry or trial and, if the property is perishable in nature, the Court may, after recording such evidence as it thinks necessary, order it to be sold. (Section 451 Cr.PC)
- If case property happens to be delicate or sophisticated and susceptible to damage or loss by careless handling, the police may seek Court's order u/s 451 Cr.PC to entrust the property to the person from whose possession they had allegedly been stolen, with an undertaking from that person to keep the property intact and produce it before the Court as and when required till its final disposal.
- When an inquiry or trial in any criminal Court is concluded, the Court may make such order as it thinks fit for the disposal, by destruction, confiscation or delivery to any person claiming to be entitled to possession thereof. (Section 452 Cr.PC)

Searches and Seizures enumerated in PSO 672 – 675

PSO 672: Witnesses to a search:

1) Whenever possible the presence of the VAOs of the Villages shall be obtained to witness a search.
2) Witnesses to a search are required to enter the premises to be searched and watch the Police Officer performing the search.
3) Before commencement of the search the person or the police officer who is to conduct it should be examined before the witnesses.

PSO 673: Time of the search:

The law does not require a search under the Cr.PC to be made during daylight. But, as a rule day-light should be awaited, the inmates of the house being made to evacuate it and the house sealed and guarded.

PSO 674: Conduct of the search:

1. Before entering the premises, the exterior of the place shall be inspected to see whether facilities exist for introducing property from outside.
2. As per Sec.165 (2) Cr.PC the SHO or IO must, if practicable do the search in person.
3. If incapacitated from so doing he must deliver to his subordinate the prescribed order in writing under section 165(3) of Cr.P.C.
4. A verbal order given on the spot will not fulfill the requirements of the Section. The Investigating Officer should use Form No. 92 when conducting a search.

PSO 675: Search List:

- The Search list (Form No 91) is in duplicate with trifoil for the Station record. One copy should be forwarded to the Magistrate having jurisdiction with a CD sheet and the other attached to the copy of the CD and forwarded to the District Police Office.
- If blank paper has unavoidably to be used, two copies of the list should be made and dealt with, as above, and entry made on the trifoil in the Station Book on return there, the forms attached to the trifoil being destroyed.

PSO 636: Search of Prisoner:

- Prisoners, who are not released on bail, shall be searched, as soon as brought to the Police Station and all property found on their person, except necessary wearing apparel, shall be sent to the Magistrate with

Form No. 86. Prisoners should not be allowed to have lengthy Dhotis, Sarees etc., which may be used for hanging.

- The removal of a sacred thread, Thali, Wedding ring or the Lingam worn by Lingayata from the person of a Prisoner is prohibited.
- A list of the property, omitting the wearing apparel retained by the Prisoner, shall be entered in the Search Register (Form No.85) which shall be signed by the senior Police Officer, the Station Writer and the Prisoner.

PSO 713: Search Register-Entry of description of Prisoner

- The description of Prisoner should be carefully and fully recorded in Coloumn 5 of the Search register on his being brought to the Station House. It should be sufficiently complete to fulfill the requirements of a description for publication in the event of the men absconding.
- The Prisoner's relatives together with their addresses should be entered underneath the description.